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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

v.

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
Carbone, Smith & Koyama, LLP;  
Michael R. Chambers;  
Phillips, Spallas & Angstadt LLP;  
Priya D. Navaratnasingham;  
Alberto Reyna;  
and DOES 1 through 20, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**  
**MEMORANDUM (JUDICIAL**  
**ESTOPPEL)**

**Defendants (caption order):** SUBHI ABDELHALIM; CSAA Insurance Exchange; Carbone, Smith and Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas and Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); and DOES 1 through 20, inclusive.

**AUTHORITY TO FILE AND AUTHORITY FOR ACCEPTANCE**

**A. Plaintiff's Right to File**

Plaintiff files this paper in pro per. Code of Civil Procedure sections 367 (real party in interest), 1014 (appearance), 1010 (notice and papers), 1005(b) (service timing), 916(a) (limited stay; trial

1 court retains jurisdiction over collateral matters), and 425.16(i) (anti-SLAPP appeal does not stay  
2 ancillary proceedings) authorize the filing. Business and Professions Code section 6125 bars only  
3 the representation of others and does not prohibit a party from filing papers on the party's own be-  
4 half. *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654 (pro per litigant has standing to file). Califor-  
5 nia Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252 authorize appellate-  
6 record preservation filings in the trial court during the pendency of an appeal. Evidence Code  
7 sections 452(d), 452(h), 453, and 459 authorize judicial notice requests at both the trial and appel-  
8 late levels. *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (party may place matters on  
9 the trial-court record for appellate preservation). *Varian Medical Systems, Inc. v. Delfino* (2005)  
10 35 Cal.4th 180, 189 to 191 (trial court retains jurisdiction to enforce or modify collateral orders  
11 notwithstanding a pending appeal). *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 (section 916(a)  
12 stay does not divest the trial court of jurisdiction over matters not embraced in or affected by the  
13 judgment). U.S. Const. amend. I (petition clause), amend. XIV; Cal. Const. art. I, sections 3 and  
14 7 (due process, petition, and access to courts).

#### 15 **B. Clerk's Duty to Accept**

16 Government Code sections 26800 et seq., 69846.5, and 70617 define the clerk's ministerial duties;  
17 none authorizes a clerk to refuse a conforming paper on substantive grounds. California Rules  
18 of Court, rules 1.20, 2.100, 2.118, and 2.259(c) govern format compliance and filing obligations.  
19 SFTC Local Rules 2.10, 2.11, and 8.10 apply to electronic filings in this court. *Voorhies v. Greene*  
20 (1983) 139 Cal.App.3d 989, 994 to 995 (clerk has no discretion to refuse filing of a conforming  
21 paper; the duty is ministerial). *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276,  
22 279 to 280 (refusal to file is subject to mandamus). *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774,  
23 777 to 778 (clerk cannot require a party to obtain court approval before accepting a conforming  
24 document for filing). *Carlson v. Department of Fish and Game* (1998) 68 Cal.App.4th 1268, 1271  
25 (ministerial duty to file conforming papers).

#### 26 **C. Per-Document Authority (Memorandum)**

27 California Rules of Court, rule 3.1113 (format); rule 8.204(a)(1); Evidence Code section 453;  
28 *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063. This memorandum supports

the accompanying Notice of Cross-Case Judicial Estoppel Facts. It is filed pursuant to California Rules of Court, rules 3.1113 (format), 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252; Evidence Code sections 452(d), 452(h), 453, and 459; and Code of Civil Procedure sections 916(a) and 1014. Plaintiff seeks no relief from the trial court; the memorandum is filed to anchor the appellate record under *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 and *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180.

## STANDARD

Judicial estoppel requires (1) the same party or privies, (2) actually litigated issues, (3) a court accepted the position, (4) totally inconsistent positions, and (5) no mistake (*Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987; *Jackson v. Cnty. of Los Angeles* (1997) 60 Cal.App.4th 171, 183).

## CONTRADICTION TABLE: FATAL FACTUAL INCONSISTENCIES (Q-1 THROUGH Q-8)

### 1. Q-1

- **801 record / May 12 order premise:** Department 301's May 12, 2026 order rested on CSAA's theory that its pre-suit denial process and in-court/MIL litigation conduct (including motions in limine) was lawful protected activity grounded in a real litigation posture. That posture incorporated the same silent-witness cluster in MIL 6 (Tx 80936030) and MIL 17 (Tx 80936053) (CGC-21-594102), judicially noticeable under Evid. Code 452(d). MIL 6/17 are judicially noticeable records of what CSAA represented in that shielded conduct. See Q-4 (MIL shielded as protected speech) and Q-2 (possession/gathering).
- **Inconsistent 802 defense position:** 802 anti-SLAPP and CCP 436 papers (Apr. 9 and Apr. 22, 2026): "CSAA reviewed the available evidence" and "CSAA performed an investigation" before the Feb. 25, 2021 denial.
- **Why the positions contradict (801 to 802):** An insurer cannot represent a completed investigation of available evidence under Ins. Code 790.03 and 10 CCR 2695.7 fair-claims standards while simultaneously representing in MIL 6/17 that the same readily available materials (911 audio, BWC, CAD) were not produced and of unknown provenance. One implies a file com-

plete enough to deny; the other implies CSAA lacked basic chain-of-custody knowledge. The May 12 order cannot be reconciled with 802's investigation narrative without mutually exclusive facts.

- **Estoppel / preservation:** Plaintiff does not ask the Court to adjudicate bad faith on this notice; this is judicial estoppel and record integrity for the May 12 anti-SLAPP order. Plaintiff does not contend statutory and tort duties are doctrinally identical; the estoppel applies to the shielding of the investigation process itself, not to the doctrinal duty label.

## 2. Q-2

- **801 defense premise accepted on May 12, 2026:** 801 demurrer (4/13) p. 4 and 801 anti-SLAPP MPA (4/9) p. 6, 9: defense's "acquisition, retention, and production" / "gathering . . . maintaining . . . transferring" of the 911/BWC/CAD is protected litigation conduct
- **Inconsistent 802 defense position:** 802 anti-SLAPP MPA (4/9) p. 5, 9 and 802 demurrer (4/13) p. 5, 9: the same 911/BWC/CAD "CSAA had failed to obtain" before the Denial Letter
- **Inconsistency:** Defense both possessed and did not possess the same physical objects in the same underlying case

## 3. Q-3

- **801 defense premise accepted on May 12, 2026:** 802 anti-SLAPP MPA (4/9) p. 9: "CSAA reviewed the available evidence" / 802 CCP 436 MPA (4/22) p. 6-7: "CSAA performed an investigation" / "the jury . . . agreed with CSAA"
- **Inconsistent 802 defense position:** 802 anti-SLAPP MPA (4/9) p. 5 (FAC paragraph 4, recited and undenied): CSAA "had not obtained or reviewed" the foundational evidence; 802 anti-SLAPP reply (5/5-6) p. 5 footnote 2: "Plaintiff has no way of knowing what steps Defendant CSAA took in investigating the claim"
- **Inconsistency:** Three mutually exclusive postures on the same investigation in the same case

## 4. Q-4

- **801 defense premise accepted on May 12, 2026:** 801 anti-SLAPP MPA (4/9) p. 6: "CSAA . . . made multiple false and misleading representations to the Court . . . in written motions

in limine and in open court statements,” shielded as CSAA’s protected speech

- **Inconsistent 802 defense position:** 802 anti-SLAPP MPA / 802 demurrer Section III.D headings and demurrer p. 14: “CSAA . . . did not actually litigate the trial” / “Subsequently Had No Role in Litigation”

- **Inconsistency:** CSAA spoke in court in 801, did not appear in court in 802

#### 5. Q-5

- **801 defense premise accepted on May 12, 2026:** 801 anti-SLAPP MPA (4/9) p. 9-11: in-court statements about “receipt, possession, and prior production” are CCP section 425.16(e)(1)-(2) statements of fact “in connection with an issue under consideration . . . by a judicial body”

- **Inconsistent 802 defense position:** 802 demurrer (4/13) p. 9: the same in-court statements are “not . . . knowingly false representations” but only “a good faith dispute over the interpretation of evidence and liability”

- **Inconsistency:** The same statements cannot be factual representations and non-statements at once

#### 6. Q-6

- **801 defense premise accepted on May 12, 2026:** 802 anti-SLAPP MPA (4/9) p. 9: “CSAA had a duty to promptly investigate” under Insurance Code section 790.03 and 10 CCR section 2695.7

- **Inconsistent 802 defense position:** 802 demurrer (4/13) p. 10: “the Code imposes no duty on CSAA . . . to provide evidence from their investigation”

- **Inconsistency:** CSAA claims a compliant, privileged statutory investigation in 801 and erases the same investigation file as a legal nullity in 802; the estoppel applies to the shielding of the investigation process itself, not to the doctrinal duty label.

#### 7. Q-7

- **801 defense premise accepted on May 12, 2026:** 801 anti-SLAPP MPA (4/9) p. 3 and 802 anti-SLAPP MPA (4/9) p. 4: “all this evidence was presented to the jury”

- **Inconsistent 802 defense position:** 802 demurrer (4/13) p. 5 (FAC paragraph 25A, recited and undenied): “the jury was deprived of the governing legal standard and foundational evi-

dence”

- **Inconsistency:** The same evidence was both presented to and withheld from the same jury in the same brief

#### 8. Q-8

- **801 defense premise accepted on May 12, 2026:** 801 anti-SLAPP MPA (4/9) p. 6 and 801 anti-SLAPP Reply (5/5) p. 3: the CHAMBERS-to-PSA file transfer and the failure to convey “production history” is communicative, protected litigation conduct
- **Inconsistent 802 defense position:** 802 anti-SLAPP reply (5/5-6) p. 5 footnote 2: “Plaintiff has no way of knowing what steps Defendant CSAA took in investigating the claim”
- **Inconsistency:** Defense’s institutional file is both knowable enough to immunize 801 and unknowable enough to defeat 802

### CONTRADICTION TABLE: MAY 12 DOCTRINAL INCONSISTENCIES (Q-9 THROUGH Q-13)

#### 1. Q-9

- **May 12, 2026 finding (801):** CCP 425.17(c) inapposite: “litigation conduct, not commercial activity”
- **Defense 802 position:** Anti-SLAPP MPA frames Feb. 25, 2021 denial letter as pre-litigation protected speech
- **Inconsistency:** Same conduct cannot be commercial pre-litigation speech in 802 and non-commercial litigation conduct in 801

#### 2. Q-10

- **May 12, 2026 finding (801):** Civ. Code 47(b) bars ancillary monetary relief
- **Defense 802 position:** Demurrer invokes same 47(b) framework against claims-handling conduct
- **Inconsistency:** Inconsistent characterization of CSAA conduct across cases

#### 3. Q-11

- **May 12, 2026 finding (801):** Issues “fully litigated” per RFJN Exs. E-H

- **Defense 802 position:** Demurrer argues limitations accrual Feb. 25, 2021
- **Inconsistency:** Cannot say fully litigated in 801 and pre-resolution accrual in 802

#### 4. Q-12

- **May 12, 2026 finding (801):** Fraud “intrinsic” not extrinsic
- **Defense 802 position:** Demurrer argues fraud cause insufficient under CCP 430.10(e)
- **Inconsistency:** Intrinsic-litigated vs. insufficiently pleaded

#### 5. Q-13

- **May 12, 2026 finding (801):** Prong one under 425.16(e)(2) litigation statements
- **Defense 802 position:** Anti-SLAPP also presses 425.16(e)(1) pre-litigation theory
- **Inconsistency:** Double-counting protection at every phase

Plaintiff does not ask Department 301 to reconsider its May 12 ruling. Plaintiff preserves these contradictions for the Court of Appeal.

### **ARGUMENT II.B: 802 DEFENSE FILINGS CONFIRM EIGHT TOTALLY INCONSISTENT POSITIONS ON POSSESSION AND INVESTIGATION (Q-1 THROUGH Q-8)**

The Q-1 through Q-8 contradictions above are drawn from the same eight 802 defense filings already attached to the RJN and the appendix volume. No new exhibits are required. The contradictions concern (a) CSAA’s pre-suit denial process and MIL truth-claims versus the 802 investigation narrative (Q-1); (b) possession of the 911 audio, body-worn camera footage, and CAD logs (Q-2); (c) whether the pre-suit investigation was performed, complete, or unknowable (Q-3); (d) whether CSAA’s MIL litigation conduct was shielded protected speech or played “no role” (Q-4); (e) whether the in-court statements about receipt, possession, and prior production were factual representations or “good faith” interpretation (Q-5); (f) whether CSAA invoked an investigative duty or erased the investigation file (Q-6); (g) whether evidence was presented to or withheld from the jury (Q-7); and (h) whether the institutional file transfer was knowable or unknowable (Q-8). Each row satisfies the five-factor *Aguilar / Jackson* test: same party or privies; actually litigated issues; the first position was accepted by Department 301 on May 12, 2026; totally inconsistent

1 later positions; and not the product of mistake (the inconsistencies persist across four serial 802  
2 briefs by the same counsel).

3 Plaintiff does not ask Department 301 to reconsider. Plaintiff preserves these contradictions for  
4 the Court of Appeal under California Rules of Court, rules 8.124(b)(1)(B) and 8.155(a)(1)(A);  
5 Evidence Code sections 452(d) and (h); and *Lerner v. Los Angeles City Bd. of Ed.* (1963) 59  
6 Cal.2d 382, 397.

7 CSAA cannot rely on agency principles to claim litigation-privilege immunity for itself in 801  
8 and then sever the same agency relationship in 802. The estoppel attaches to CSAA's institutional  
9 petitioning posture, not to discrete factual admissions: to obtain anti-SLAPP relief in 801 CSAA  
10 had to assert a legal nexus between itself and the defense team's protected litigation conduct, and  
11 that asserted nexus is what binds CSAA in this Department.

## 12 **ARGUMENT II.C: THE ARGUENDO DEFENSE FORECLOSES THE** 13 **802 DEMURRER**

14 To the extent defense characterizes its 801 positions as mere arguendo hypotheticals not amounting  
15 to position adoption, that characterization is fatal to the 802 demurrer. If the 801 anti-SLAPP did  
16 not resolve the factual questions of agency, ratification, possession, investigation, and direction  
17 of counsel, those allegations remain alive and well-pleaded in the operative 802 First Amended  
18 Complaint. Under *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967, and *Blank v.*  
19 *Kirwan* (1985) 39 Cal.3d 311, 318, the trial court must accept those allegations as true for purposes  
20 of the 802 demurrer. Defense cannot characterize its 801 arguments as "just hypotheticals" to  
21 escape estoppel while simultaneously asking Department 302 to resolve the same factual disputes  
22 in CSAA's favor on a demurrer. The Court of Appeal should treat the arguendo characterization,  
23 if raised, as an independent ground for reversing the May 12 order: the only reading of CSAA's  
24 papers that defeats estoppel is the same reading that revives every well-pleaded factual allegation  
25 against CSAA on the 802 pleading.



## **ARGUMENT II.D: SUBSTANTIVE TRUTH-CLAIM LAYER (LAYER B) AND FAIR-CLAIMS IMPLICATIONS**

Argument II.D supplies the independent Layer B estoppel ground, now led by Q-1.

Q-1 establishes the core Layer B contradiction. Department 301's May 12, 2026 order rested on a defense posture that incorporated CSAA's MIL 6 and MIL 17 truth-claims: that the 911 audio, body-worn camera footage, and CAD-related silent-witness materials were not produced in discovery and had unknown provenance. MIL 6, Tx 80936030, is titled "MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY," and at page 3, lines 1 to 5, sought to "exclude all documents and evidence, including but not limited to videos, photographs, recorded materials, tangible items, or documents including audio of a 911 call purported to be related to the incident . . . that Plaintiff has failed to produce in discovery." MIL 17, Tx 80936053, states at page 3, lines 1261 to 1262, that "this alleged log and recording were not produced during discovery," and at page 3, lines 1264 to 1265, that "Defendant has no idea where this 911 call log or audio recording came from and who created it."

Those were not merely hypothetical anti-SLAPP characterizations. They were affirmative truth-claims advanced to obtain exclusion of evidence in the underlying trial court. The 802 papers then represent that "CSAA reviewed the available evidence" and that "CSAA performed an investigation." Together with the 802 demurrer posture accepting, for pleading purposes, the FAC recital that the foundational evidence was not obtained or reviewed, the record creates a triple-bind: MIL affirmative truth-claim, 802 demurrer admission of the pleaded nonreview, and 802 anti-SLAPP investigation-claim. The Court of Appeal may apply judicial estoppel on this Layer B ground alone because the MIL truth-claims and the 802 investigation-claim cannot both be true litigation positions on the same silent-witness materials.

The Layer B contradiction carries independent fair-claims significance. Under Insurance Code section 790.03(h)(3) and (5), an insurer is prohibited from failing to adopt reasonable standards for the prompt investigation of claims and from failing to affirm or deny coverage within a reasonable time after proof of loss. Under 10 CCR section 2695.7(b) and (d), CSAA was required to conduct

1 a thorough, fair, and objective investigation sufficient to reach a coverage determination before  
2 issuing the February 25, 2021 denial. *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d  
3 809, 818-819, holds that the implied covenant of good faith and fair dealing requires an insurer  
4 to thoroughly investigate a claim before denying benefits; an unreasonable failure to investigate is  
5 itself a breach. *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720-723, confirms that the  
6 reasonableness of an insurer's claims-handling conduct is measured by the information available  
7 to or reasonably obtainable by the insurer at the time of the denial.

8 Q-3 and Q-6 reinforce this fair-claims implication. Q-3 establishes that CSAA took three mutually  
9 exclusive postures on the same investigation in the same case: reviewed the available evidence,  
10 had not obtained or reviewed the foundational evidence, and "Plaintiff has no way of knowing  
11 what steps Defendant CSAA took." Q-6 shows CSAA invoking a duty to promptly investigate  
12 under Insurance Code section 790.03 and 10 CCR section 2695.7 in one brief and erasing the same  
13 investigation file as a legal nullity in another. Taken together with Q-1, the fair-claims frame-  
14 work confirms that CSAA cannot simultaneously claim compliance with its statutory investigation  
15 obligations (to obtain anti-SLAPP immunity) and disclaim any duty to disclose the results of that  
16 investigation (to defeat liability). The investigation file either existed and was adequate, or it did  
17 not; the 802 papers assert both.

## 18 **STATEMENT OF APPELLATE ISSUE (FOR THE 1ST DISTRICT COURT** 19 **OF APPEAL)**

20 Whether the May 12, 2026 anti-SLAPP order in CGC-25-631801 can stand when the same defen-  
21 dants, represented by the same counsel (Porter Scott; Tapp; O'Connell), have taken, in the related  
22 and parallel action CGC-25-631802, positions of fact and law that are totally inconsistent with the  
23 factual premises the trial court accepted in granting the May 12, 2026 order, including positions  
24 about (a) defense possession of the 911 audio, body-worn camera footage, and CAD logs; (b)  
25 whether CSAA performed or completed the pre-suit investigation announced in the February 25,  
26 2021 denial letter; (c) whether CSAA owed an investigative duty under Insurance Code section  
27 790.03 and 10 California Code of Regulations section 2695.7; (d) whether CSAA had "no role" in  
28 the underlying litigation; (e) whether the in-court representations about "receipt, possession, and

prior production” of those materials were factual representations triggering Code of Civil Procedure section 425.16(e)(1)-(2) or merely “a good faith dispute over the interpretation of evidence and liability”; and (f) whether the May 12, 2026 order can stand when CSAA’s institutional defense team affirmatively represented to the underlying trial court in MIL 6 and MIL 17 that the silent-witness materials had unknown provenance and were not produced in discovery, and where CSAA now represents in 802 that those same materials were among the available evidence reviewed before the denial letter, thereby raising the Q-1 Layer B contradiction and its fair-claims implications under Insurance Code section 790.03 and 10 CCR section 2695.7.

## STANDARD OF REVIEW

Anti-SLAPP orders are reviewed de novo. *Park v. Bd. of Trustees of Cal. State Univ.* (2017) 2 Cal.5th 1057, 1067; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884. Whether allegations of protected activity are mere context or are themselves the wrong complained of is likewise de novo. *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394. The legal predicates of judicial estoppel are reviewed de novo; application is reviewed for abuse of discretion. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987; *Jackson v. Cnty. of Los Angeles* (1997) 60 Cal.App.4th 171, 183. The doctrine “is intended to protect against a litigant playing fast and loose with the courts.” *Jackson*, supra, 60 Cal.App.4th at 181.

## CONTROLLING AUTHORITY

- *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987 (five-factor judicial estoppel test).
- *Jackson v. Cnty. of Los Angeles* (1997) 60 Cal.App.4th 171, 181, 183 (purpose and elements).
- *Park v. Bd. of Trustees of Cal. State Univ.* (2017) 2 Cal.5th 1057, 1060-1063 (anti-SLAPP protects the moving party’s own activity; the moving party must establish nexus to that activity; de novo review).
- *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884 (de novo review).
- *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394 (mere-context allegations).
- *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 503 (estoppel across related actions).
- *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1468-1471 (related-case estoppel where prior

1 factual position prevailed).

- 2 • *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412,  
3 422 (separate proceedings remain “actually litigated”).
- 4 • *Daar & Newman v. VRL International* (2005) 129 Cal.App.4th 482, 491 (counsel positions  
5 imputed to client; establishes the institutional petitioning posture binding CSAA to the de-  
6 fense team’s litigation conduct).
- 7 • *Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1115 (constructive  
8 petitioning where statements are made by or on behalf of the moving party).
- 9 • *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818-819 (insurer must thoroughly  
10 investigate before denial; failure to investigate is breach of implied covenant).
- 11 • *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720-723 (reasonableness of claims-  
12 handling measured by information available at time of denial).
- 13 • *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967 (demurrer admits well-  
14 pleaded facts).
- 15 • *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (same).
- 16 • *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 (liberal construction in plain-  
17 tiff’s favor on demurrer).
- 18 • *Lerner v. Los Angeles City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (appellate record preserva-  
19 tion principle).
- 20 • *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 715 (“reasonably probable a  
21 different result” standard).
- 22 • MIL 6, CGC-21-594102, Tx 80936030, January 17, 2025, a judicially noticed court record  
23 under Evidence Code section 452(d), supporting the Layer B (Q-1) contradiction.
- 24 • MIL 17, CGC-21-594102, Tx 80936053, January 17, 2025, a judicially noticed court record  
25 under Evidence Code section 452(d), supporting the Layer B (Q-1) contradiction.

26 Parent appeal anchor: *Rosario v. Abdelhalim*, Cal. 1st Dist. Ct. of Appeal, Case No. A173827  
27 (notice of appeal filed; record on appeal designated). The 802 defense filings themselves rely on  
28 A173827 (see, e.g., 802 anti-SLAPP MPA at p. 1 footnote 1 and p. 2 footnote 3; 802 demurrer

MPA at p. 2 footnote 2), placing the related-case posture squarely before the 1st DCA.

## **CUMULATIVE EFFECT AND STRUCTURAL INTEGRITY**

Each Q-row standing alone satisfies *Aguilar / Jackson*. Taken together, thirteen contradictions across two cases on the same physical evidence, the same denial letter, the same chain of custody, the same in-court representations, and the same statutory investigative duty defeat any claim of mistake or inadvertence and confirm a pattern of “fast and loose” positions. *Jackson*, supra, 60 Cal.App.4th at 181. Layer B (Q-1, the MIL truth-claim contradiction) independently satisfies *Aguilar / Jackson* on a record where defense affirmatively vouched for the MIL representations; the Court of Appeal may apply estoppel on Layer B alone, on Layer A alone, or on both, and each path independently undermines the May 12 order. The cumulative inconsistencies independently undermine the prong-one trigger under *Park* (because defense disclaims that the alleged speech occurred), independently undermine the prong-two privilege defense under Civil Code section 47(b) (because defense recharacterizes the same statements as non-statements), and independently support reversal under the “reasonably probable a different result” standard of *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 715.

Defense cannot tell Department 301 the underlying conduct was CSAA’s own protected petitioning and tell Department 302 the same conduct cannot be imputed to CSAA. The first move was a legal-nexus assertion CSAA needed to obtain 425.16 protection; the second move severs that nexus to defeat liability. That is the precise inconsistency *Aguilar*, supra, 32 Cal.4th at 986 to 987, prohibits. Toggling between “compliant statutory investigation” (for immunity) and “no duty to disclose” (for dismissal) is structural gamesmanship, not inadvertence. Whatever doctrinal label applies to each duty, the same investigation file is being simultaneously brandished and hidden. That pattern independently defeats any factor-five mistake defense under *Aguilar*, supra, 32 Cal.4th at 986 to 987, and supplies a narrow no-investigation-file-erasure basis for relief even if the Court of Appeal otherwise distinguishes the two duty doctrines.

## **PRESERVATION**

This memorandum is filed for preservation of the appellate record under California Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252, and Evidence Code sections 452(d),

1 452(h), and 459. Plaintiff seeks no relief from Department 301. Plaintiff reserves the right to move  
2 the Court of Appeal under CRC 8.252 to augment the record on appeal in A173827 with the 802  
3 defense filings attached to this notice, and reserves the right to seek appellate judicial notice under  
4 Evidence Code section 459. *Lerner*, supra, 59 Cal.2d at 397.

Dated: May 26, 2026



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